

Court No. - 3

Case :- WRIT - C No. - 12883 of 2022

Petitioner :- Pyare Lal

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Sandeep Kumar Tripathi

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard Sri Sandeep Kumar Tripathi, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Rajesh Yadav, learned counsel for the respondent No.2.

This writ petition has been filed praying for the following relief:

"i) Issue a writ order direction in the nature of certiorari quashing the demand notice dated 22.12.2021 Issued by Executive Engineer Madhyanchal Vidyut Vitaran Nigam Limited Baheri, Dist. Bareilly of Rs 2,47,571 against the petitioner.

ii) Issue a writ order direction in the nature of mandamus commanding and directing the respondent not to adopt any coercive step against the petitioner in pursuance of the recovery of the aforesaid dues of electricity bill. Any other suitable writ, order of direction which this Hon'ble Court may deem fit and proper in the Circumstances of the case."

Sri Rajesh Yadav, learned counsel for the respondent No.2/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under **Para 6.5 of U.P. Electricity Supply Code, 2005** before the respondent No.2, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 7.7.2022

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